

own negligence allowed the default to occur. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13. Defendants knew of the dispute and the pending enforcement action yet chose not to participate, forfeiting their right to equitable intervention.

Defendants argue that they acted with reasonable diligence because they retained counsel within two months of the entry of default. However, the time for diligence runs from the entry of default, not the default judgment. *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273. Because Defendants had extensive notice of the lawsuit and delayed five months before default was even entered, their post-default speed cannot cure their pre-default inexcusable neglect.

Defendants rely heavily on the public policy favoring the resolution of cases on their merits. *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235. Where inexcusable neglect is clear, the policy favoring trial on the merits no longer prevails. The court cannot allow a party to use default rules as a tactical delay mechanism, especially in a public nuisance action.

Defendants argue that Plaintiffs will suffer no legal prejudice if the defaults are vacated because the ordinary necessity of litigating on the merits is not prejudice. This argument is unavailing. The City has demonstrated that it spent over four years pursuing administrative abatement, held multiple hearings, recorded notices, and expended significant public resources preparing a detailed complaint and default-judgment application (Declaration of Arley T. Titzler, paragraphs 4-16). Allowing Defendants to vacate their defaults without a satisfactory excuse would force the City to duplicate this work and would prolong the unabated public nuisance, directly harming public health and safety.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500446	TODD VS VEVOR STORE, LLC	HEARING: PRESERVE EVIDENCE

Tentative Ruling: Appearances required.

The legislative intent behind CCP 128 is to ensure that trial courts possess the tools necessary to administer justice fairly, maintain courtroom decorum, prevent procedural abuse, and enforce their own rulings. Rather than granting sweeping new powers, the statute codifies the judiciary's inherent power under the Separation of Powers doctrine, ensuring courts do not rely entirely on specific procedural rules to maintain order and authority.

“The Discovery Act does not expressly prohibit the intentional destruction of relevant evidence (“spoliation”) before a lawsuit has been filed or before a discovery request.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:19.5 citing *Dodge, Warren & Peters Ins. Svcs., Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1419.) But, as to electronically-stored information (ESI), a party has a prelitigation duty to preserve material evidence if litigation is “reasonably foreseeable.” (*Id.* § 8:19.7 citing *Victor*

Valley Union High School Dist. v. Sup. Ct. (John M.M. Doe) (2023) 91 Cal.App.5th 1121, 1138.) And, there are other constraints on destroying relevant evidence. (*Id.* § 8:19.11.) “A court may issue an injunction in aid of discovery, requiring a party to preserve relevant evidence in its possession for discovery purposes.” (*Id.* § 8:19.12 citing *Dodge, supra*. [court has *inherent power* to issue “freeze” order enjoining party from destroying ESI so it’s available for future discovery.]) Here, the Coroner’s Office is not a party to this action.

CCP § 2017.010, which provides: “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

Notably, these statutes do not expressly authorize a court to issue an order directing a third-party to preserve evidence.